

Introduction to the Legal System II

Forms of State

Lecture I

Agenda

- Forms of State and Government
- How do we Classify Them?
- Historical Evolution

The State

Montevideo Convention 1933

Art. 1

The state as a person of international law should possess the following qualifications:

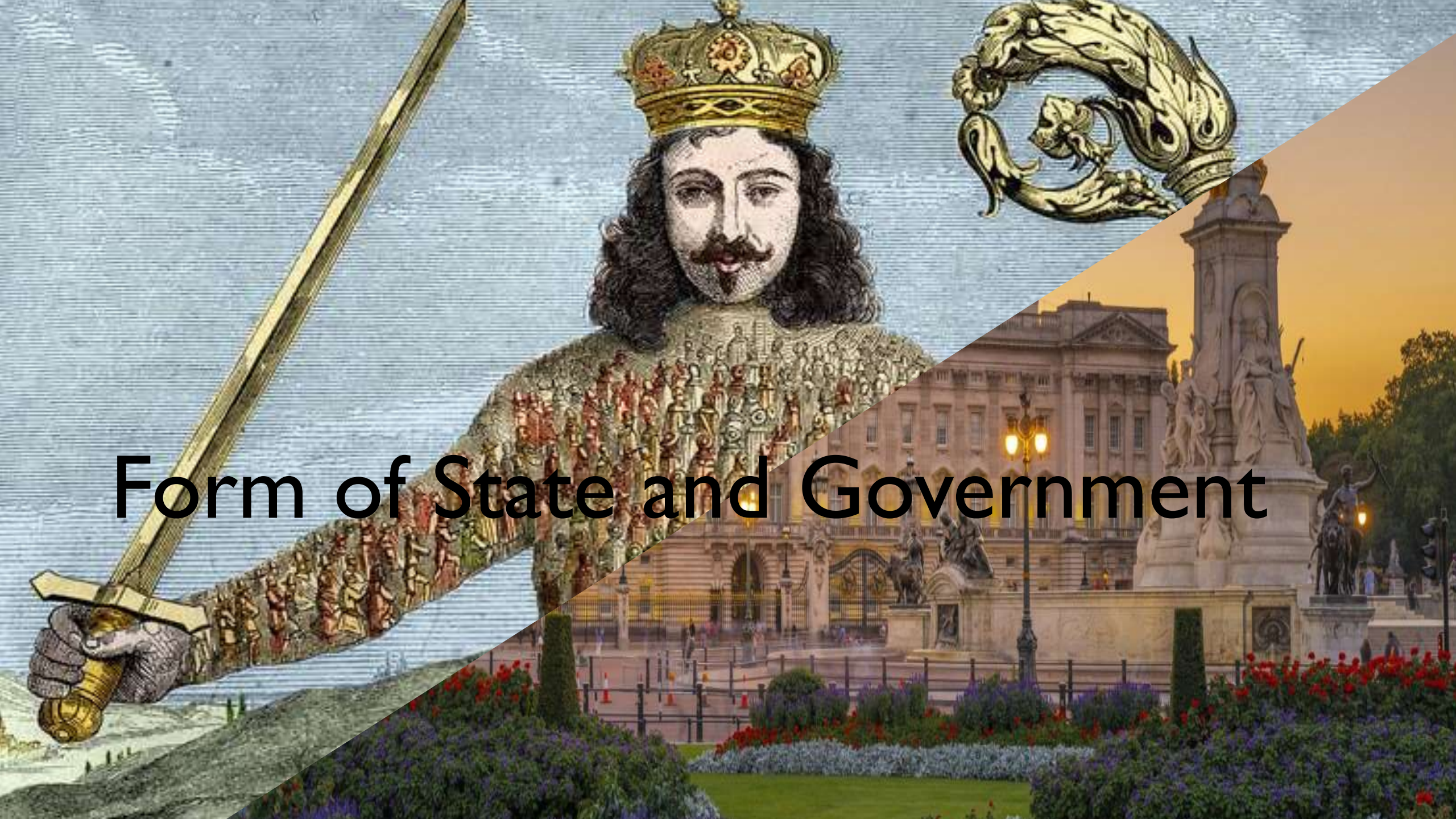
1. a permanent population;
2. a defined territory;
3. government;
4. capacity to enter into relations with the other states.

Art. 2

The federal state shall constitute a sole person in the eyes of international law.

Art. 4

States are juridically equal, enjoy the same rights, and have equal capacity in their exercise. The rights of each one do not depend upon the power which it possesses to assure its exercise, but upon the simple fact of its existence as a person under international law.



Form of State and Government



Form of State

- The term Form of State describes the relationship between the State (the sovereign) and its citizens.
- A **vertical** relationship.
- It is the relationship between the holder of power and the subjects of that power.
- Can be seen as the relationship between **authority** and **liberty**.

Form of Government

- The term indicates the distribution of power among different branches of government
- A horizontal relationship
- The relationship between constitutional bodies – organs with the same level of sovereignty and independence
- E.g. parliament, head of state, head of government



Classification Methods

Comparative Method

Diachronic Method

- We use it to Classify Forms of State.
- A historical look.

Synchronic Method

- We can classify Forms of State also on the basis of their territorial organization
 - The allocation of power (mostly legislative) between the Central Government and sub- state entities.
- A contemporary look.

Comparative Method

Diachronic Method

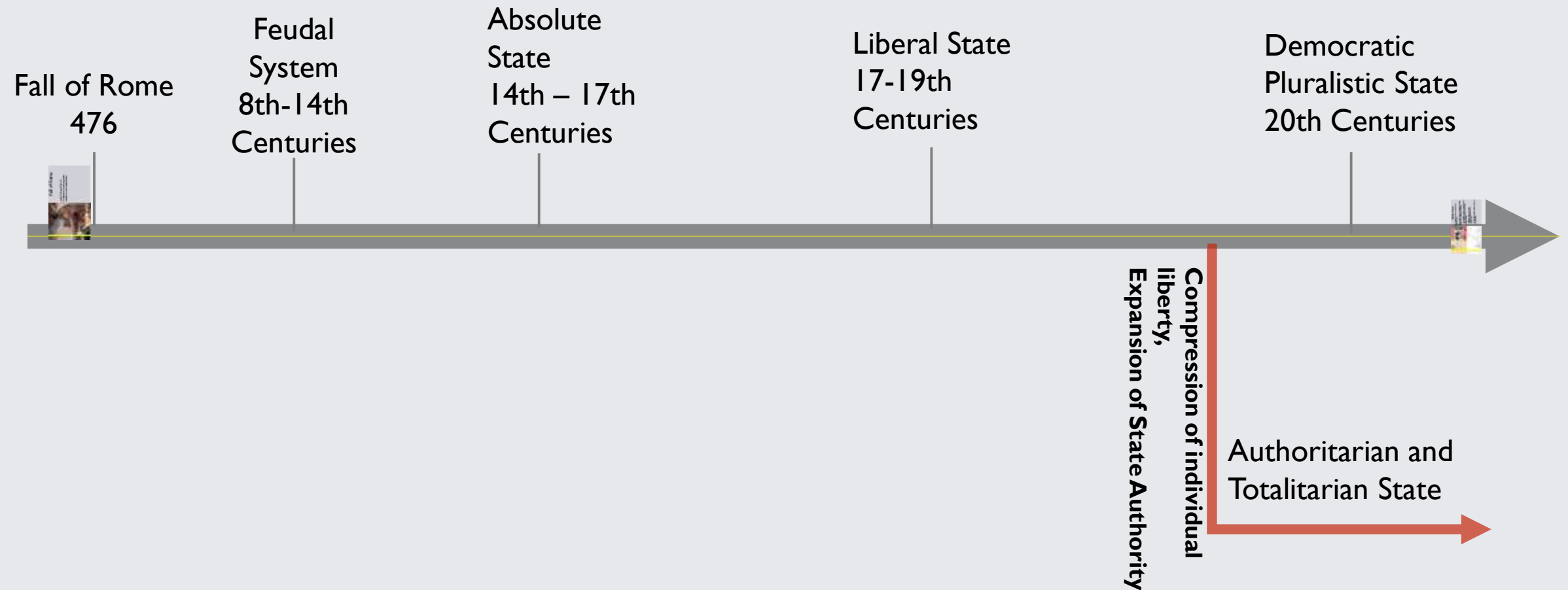
- We use it to Classify Forms of State.
- A historical look.

Classifying forms of State diachronically:

- Feudal State
- Absolutist State
- Liberal State
- Democratic Pluralistic State
 - Welfare State
- Alternatives to the Democratic Pluralistic State
 - Totalitarian and Authoritarian State
 - Socialist State

Historical Evolution

Historical Evolution



Fall of Rome

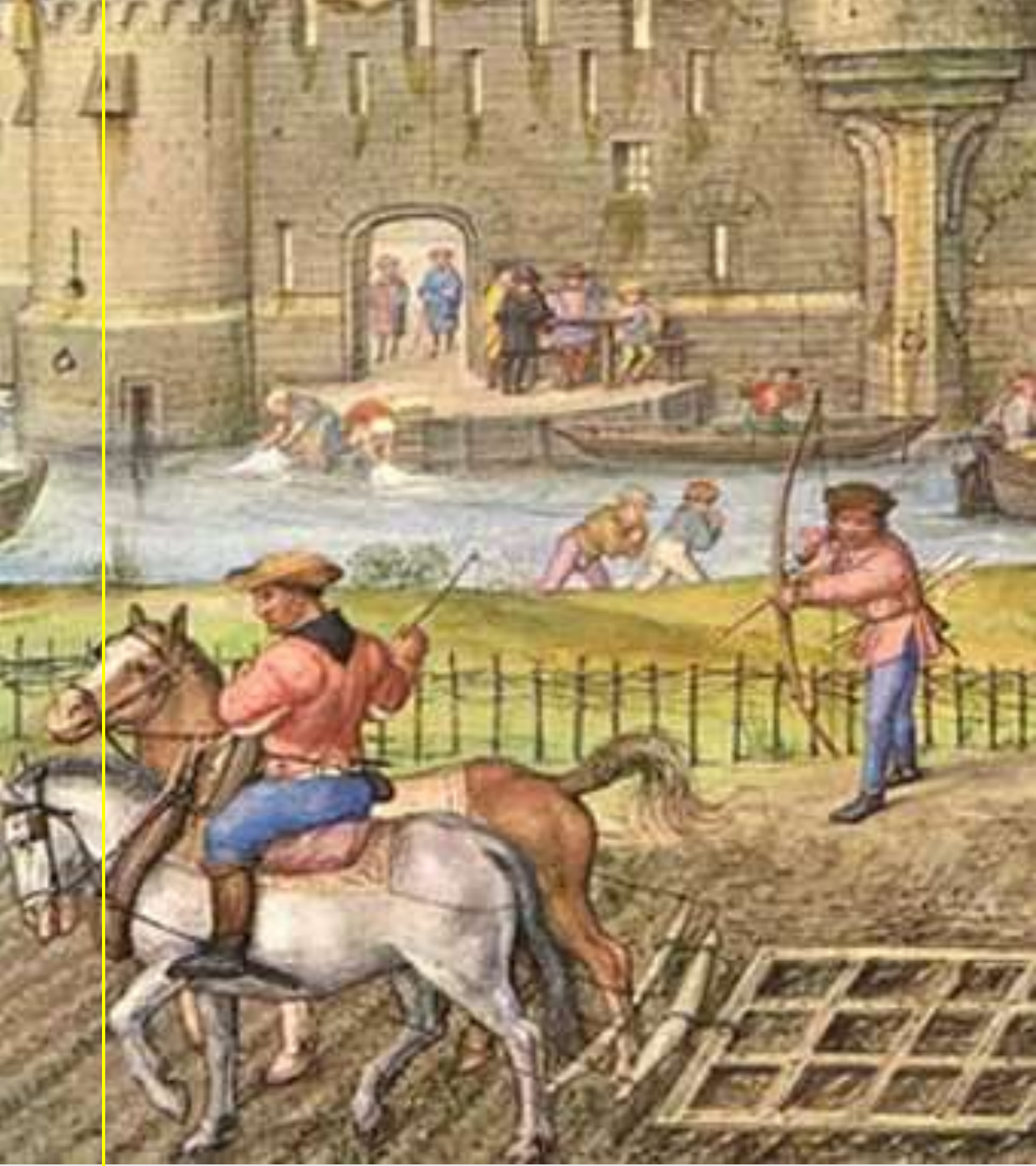
- Fall of Rome 476 A.D.
- Collapse of previous order
- Leads to the Feudal State





Feudal System

- No State *stricto sensu* yet
- Total identification of the feudal lord (or the King) with the **land**
- Power over vast territories exercised by the king through **private contracts** with feudal lords (vassals)
 - Feudal Lords have power to collect taxes and administer justice



Feudal System

- They had to defend the lord during war
- **Patrimonial State** – its aim was not to fulfil the general interests of the people but to meet the needs of the lord
- Role of public power was limited to protecting the land and the possessions of the lord (including peasants) from external attacks



The Absolute State

Origin

- From 14th century on through gradual **consolidation** of dynastic States
 - The unification of territories under the power of a **single rulers** (first in England, France and Spain)
- Ultimately formalized as main Form of State in Europe by **Peace of Westphalia**
- 2 power shifts:
 - From Feudal Lords to the stabilization of **monarchical authority**
 - from land to **money** – seeds for the emergence of urban bourgeoisies



The Absolute State

Characteristics

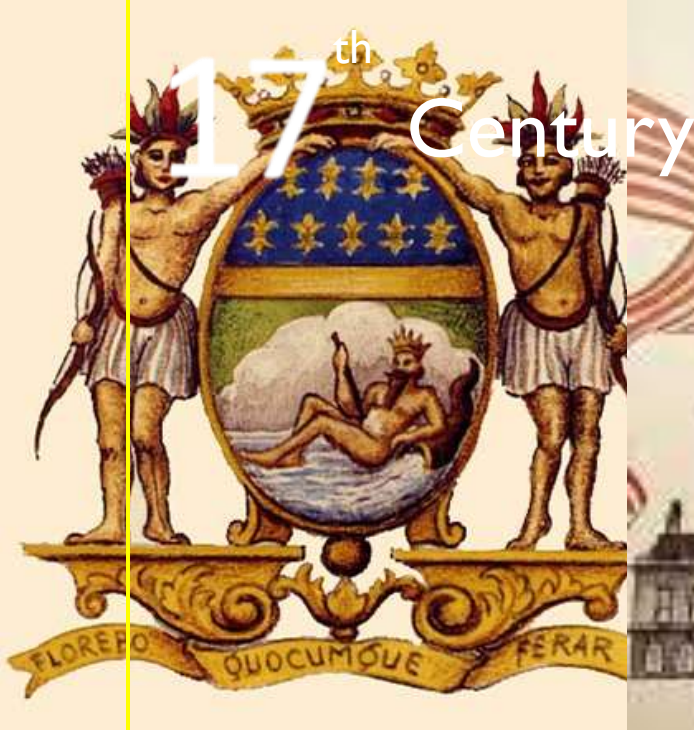
- The King has **supreme authority** (sovereignty)
 - Unrestricted Rule
 - But to different extent in France v. United Kingdom (Magna Carta)
- **N.B.** While absolutist, this State had an aspiration to fulfil the general interest of the people



The Absolute State

Characteristics

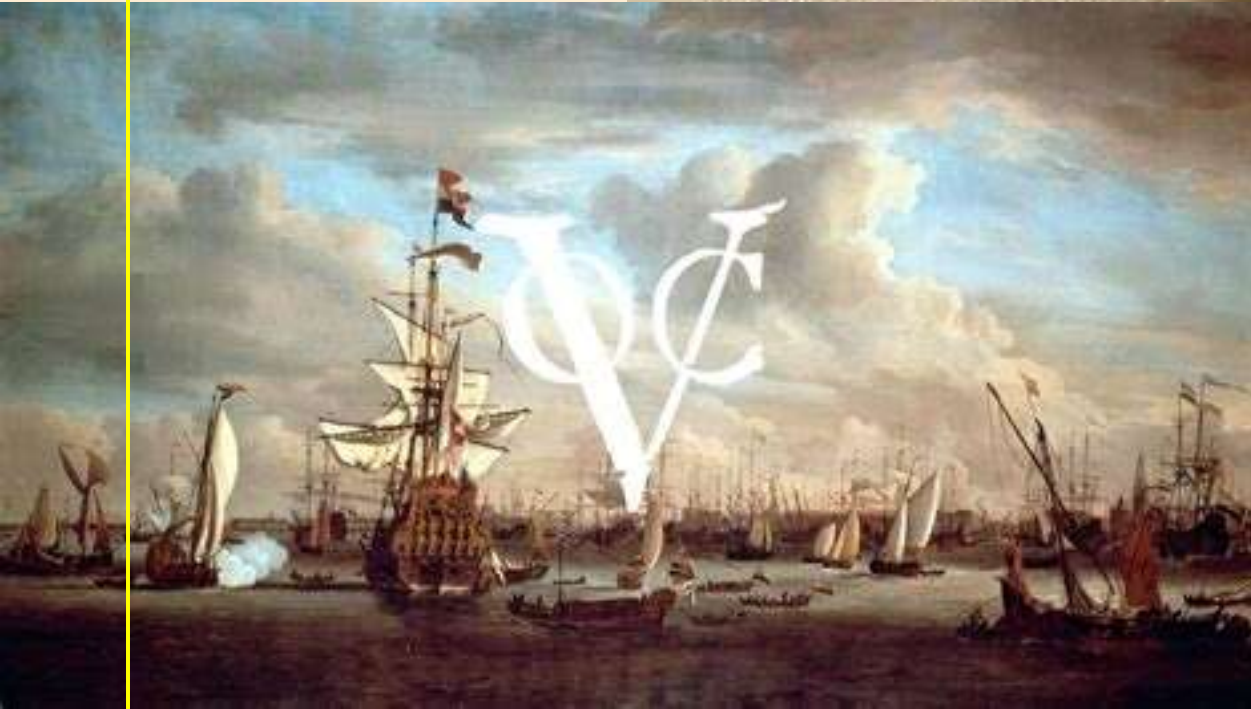
- The State became more **interventionist**:
 - growing involvement in the economy
 - E.G. **Mercantilism** under Louis XIV
 - A Command Economy
 - Protectionism
- Growing public functions exercised through large centralized **bureaucracies**



The Absolute State

Characteristics

- Growing public functions exercised through large centralized **bureaucracies**
- Growing colonial aspirations required large **standing armies**
- These are financed with growingly complex **tax systems**



Enlightened Absolutism



- Royal rule inspired by the principles of the **Enlightenment**:
 - Efforts to **improve** life of their subjects (education, moral campaigns)
 - Limited Recognition of **rights**:
 - Freedom of speech
 - Right to property;
 - Religious toleration
- **But** these kings still believe they have the right to govern by birth:
 - rights are revocable
 - no permanent constitutions granted
- **E.G. Frederick II of Prussia (1740-1786), Catherine the Great, Maria Theresa (1745-1765), and her eldest son Joseph II of Austria (1764-1790).**



Enlightened Absolutism

- **Financial Problems**
 - Overextension of armies and bureaucracies
- **Socio-Economic Transformations**
 - Industrial revolution
 - Middle classes ask for more power and better representation of their interests
- Country-specific **political** developments
 - England: English Civil War and Glorious Revolution 1688
 - France: French revolution 1789
 - US: American Revolution (1775-1783)
 - Italy and Germany: top-down unification

The Crisis of Absolutist States

Passage to liberal State:

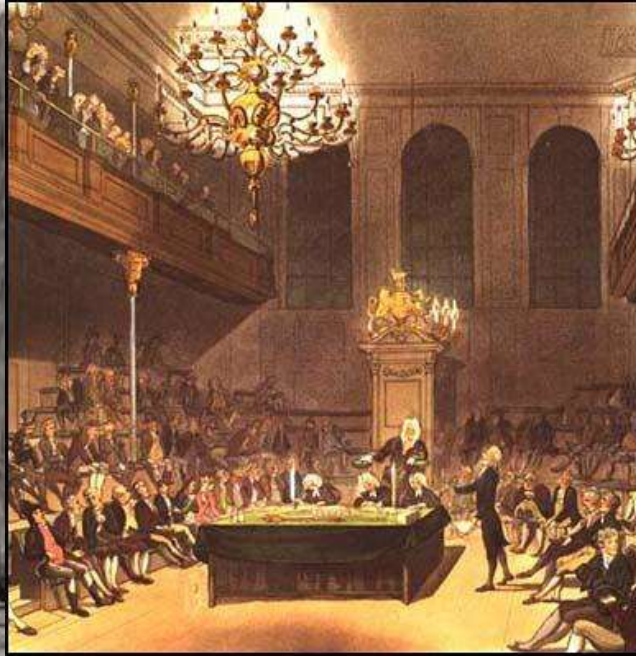
- 1.gradual (UK);
- 2.violent (France);
- 3.top-down (Germany and Italy).

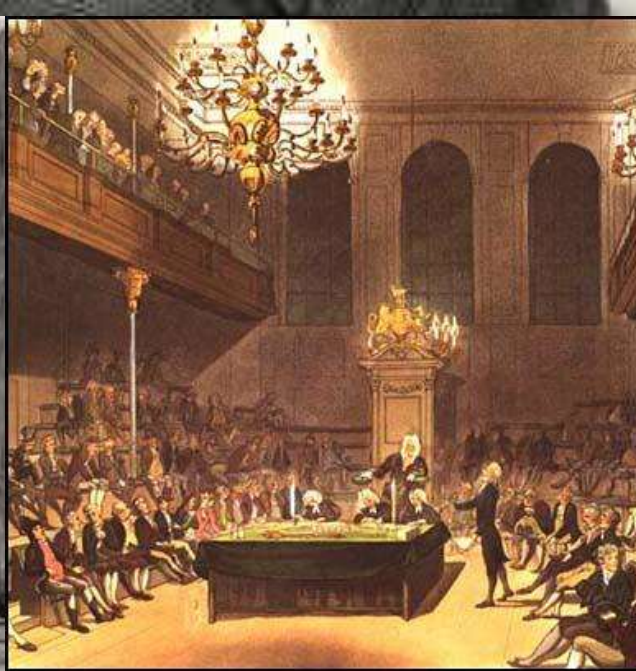


The Liberal State

Characteristics

- Permanent limitation of power of the Sovereign through **Constitutions – Rule of Law**
- Prevalence of **individualism** and the protection of rights and freedoms (**First Generation Rights**)
- **Minimal State**
 - End of Mercantilism
 - Market Economy and Free Trade
 - Strong separation State/society





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 - Strong separation State/society
- **Representative government**, but
 - still mono-class representation
 - census-based suffrage (only people with a certain education, or rent or income allowed to vote).



The Democratic Pluralistic State

- Emerges as a result of the **gradual transformation** of the liberal state
 - at different times and to different degrees in various countries
- Passage from mono to **multi-class representation**
 - **Universal suffrage**



transformation of the liberal state

- at different times and to different degrees in various countries
- Passage from mono to **multi-class representation**
 - **Universal suffrage**
- **Pluralistic** because it recognizes and protects a plurality of groups, interests, ideas and values that are allowed to coexist in society and are represented in Parliament
 - The State **is not everything** – closer contacts between State and Society

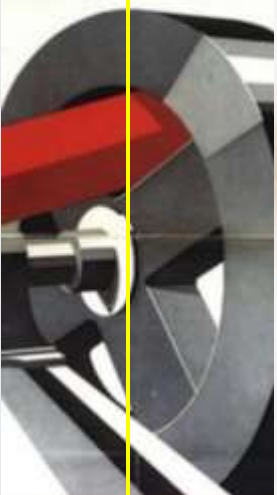
The Democratic Pluralistic State

Characteristics

1. Mass political parties;
 - supported by millions of voters
2. Elected bodies as the place of discussion and confrontation of diverging interest groups;
3. Recognition not only of liberal, first generation rights, but also second generation social and economic rights

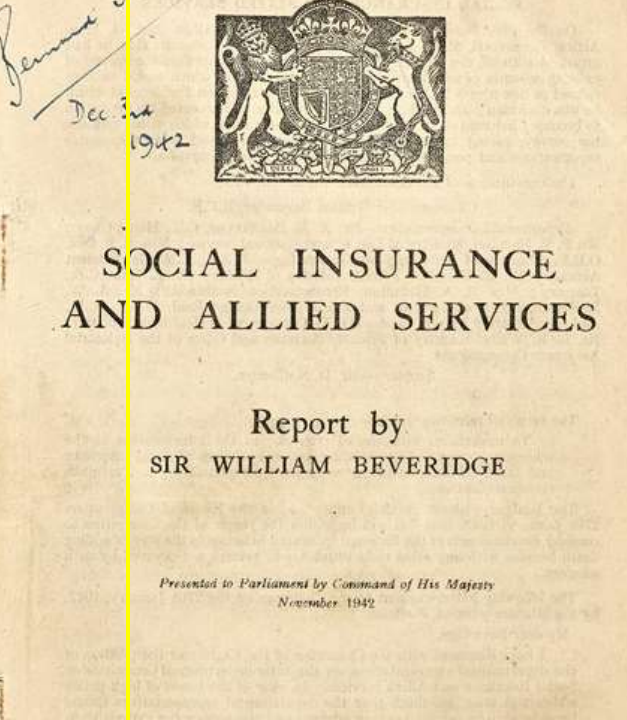


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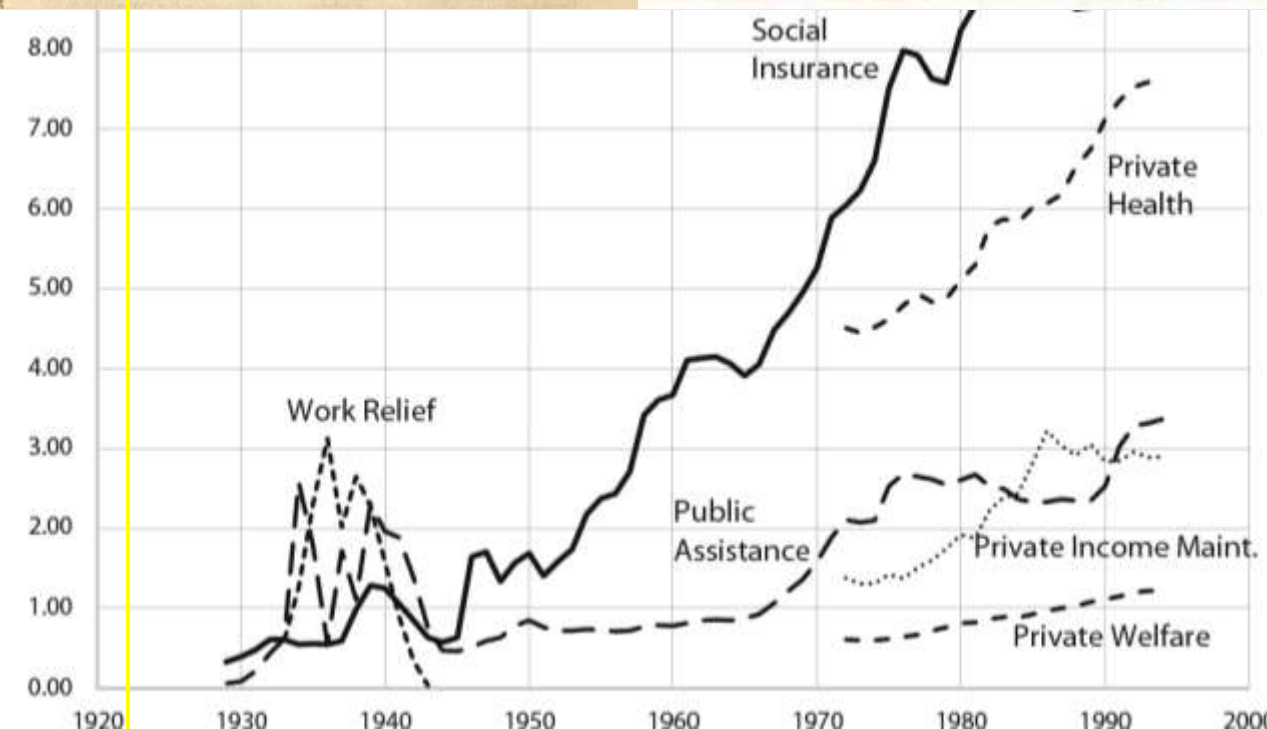
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Welfare State

- It is a particular form of the democratic pluralistic State
- State provides support to individuals through **social security**, healthcare, education
 - «**From cradle to grave**» – a high degree of intervention on the part of the State
- Example – **Britain**
 - William Beveridge: the **Social Insurance and Allied Services Report 1942**
 - E.G. Britain's **National Health Service (NHS)**
 - Nordic Model



Historical Evolution

